

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00091-CR

RODNEY DERON PATTERSON, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 196th District Court
Hunt County, Texas
Trial Court No. 34465CR

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice van Cleef

MEMORANDUM OPINION

On October 28, 2022, the State alleged that Rodney Deron Patterson committed the offense of indecency with a child by exposure. After Patterson was found incompetent to stand trial, the trial court entered an agreed judgment of incompetency and commitment to a mental health facility on November 14, 2022, "for further examination and treatment toward the specific objective of [Patterson] attaining competency to stand trial." Because competency could not be achieved, the trial court ultimately found Patterson not guilty by reason of insanity and entered a judgment of acquittal in 2026. Even so, the trial court's judgment made an affirmative finding that the offense involved placing another person in imminent danger of serious bodily injury and, as a result, ordered Patterson's commitment to a mental-health facility under Chapter 46C of the Texas Code of Criminal Procedure. *See* TEX. CODE CRIM. PROC. ANN. art. 46C.251 (Supp.).

On appeal, Patterson argues that the trial court's finding of dangerousness is not supported by the record evidence. We agree that the State failed to present evidence to support a finding that the offense involved placing another in danger of imminent serious bodily injury. As a result, we reverse the trial court's commitment order.

I. Applicable Law and Standard of Review

This case is governed by Article 46C.157 of the Texas Code of Criminal Procedure, which states,

> If a defendant is found not guilty by reason of insanity, the court immediately shall determine whether the offense of which the person was acquitted involved conduct that:
>
> (1) caused serious bodily injury to another person;

(2) placed another person in imminent danger of serious bodily injury; or

(3) consisted of a threat of serious bodily injury to another person through the use of a deadly weapon.

TEX. CODE CRIM. PROC. ANN. art. 46C.157. If such a finding is made, "the court retains jurisdiction over the acquitted person" and can order institutionalization or outpatient treatment. TEX. CODE CRIM. PROC. ANN. art. 46C.158. If the offense for which the person was acquitted did not involve conduct under Article 46C.157, then the trial court can consider transferring the person to the appropriate court for civil commitment proceedings, among other things. TEX. CODE CRIM. PROC. ANN. art. 46C.159, art. 46C.201(b) (Supp.).

As we have stated before, "[a]n Article 46C.157 finding involves a mixed question of law and fact." *Nelson v. State*, No. 06-19-00070-CR, 2019 WL 3330967, at *2 (Tex. App.—Texarkana July 25, 2019, no pet.) (mem. op., not designated for publication) (citing *Scott v. State*, No. 10-16-00370-CR, 2017 WL 3183285, at *1 (Tex. App.—Waco July 26, 2017, no pet.) (mem. op., not designated for publication)). "When reviewing a trial court's ruling on a mixed question of law and fact, we review de novo the application of the law to the facts, but we afford almost total deference to the trial court's evaluation of the credibility and demeanor of witnesses." *Id.* (citing *Estrada v. State*, 154 S.W.3d 604, 607 (Tex. Crim. App. 2005)). "If the resolution of the issue does not turn on credibility and demeanor, we review the ruling on a de novo basis." *Id.* (citing *Guzman v. State*, 955 S.W.2d 85, 89 (Tex. Crim. App. 1997)).

II. The Evidence

The State alleged that Patterson exposed his genitals to Jane Doe, a child younger than seventeen years old. The State introduced a copy of the police report, which shows that

Patterson exposed himself to Doe on a public street, "thrust his pelvic region" at her, and followed her into a restaurant owned by her family with his pants down. Doe and her sister yelled for their father, who was working. According to the police report, a bystander yelled at Patterson to leave and told Doe's parents what had occurred. Patterson left the restaurant but was pursued and arrested after he said he was "just trying to ask if he could use the restroom."

The State did not present evidence in the form of testimony of any individual who was present at the time of the incident, nor did its experts examine Jane Doe.

Timothy Alan Ingram, a licensed forensic psychologist, testified that Patterson, who suffered from schizophrenia, acted involuntarily when he exposed himself. His report, introduced into evidence, states that "Patterson was suffering with severe mental illness and was unable to decide right from wrong." At trial, Ingram described the incident as "a happenstance event of a disturbed man who was in a psychotic state who was not planning a behavior." He also testified, "As far as dangerousness goes, that kind of behavior is repugnant and illegal, for sure, but the issue of whether that constitutes dangerousness is -- is still not clear." Ingram did not find Patterson's behavior to be a "pattern," nor did he find the last incident to be "an escalation." In sum, "[i]t shows bad judgment; it shows confused behavior; it shows bizarre behavior, for sure. But [Ingram] [did not] see it as necessarily an escalation."

Nicole Everett, a licensed professional counselor, testified generally that "child[-]sexual abuse has long-term psychological, physical, social, and economic concerns." Everett explained that stress could cause issues with a child's immune response and could lead to substance abuse, depression, or suicidal ideation. She also testified, "There is a likelihood of developing heart

disease, lung disease, obesity, chronic pulmonary disease, diabetes, cancers." Even so, Everett testified that she had not met Doe or her sister and admitted that they could be unharmed by Patterson's act.

III. Analysis

As for the issue of dangerousness, the State does not argue that Patterson caused serious bodily injury to Doe or that a deadly weapon was involved. Instead, the issue before us is whether the trial court properly found that Patterson placed a child in imminent danger of serious bodily injury.

"'Imminent' means something that is immediate, something that is going to happen now." *Kelso v. State*, 562 S.W.3d 120, 132 (Tex. App.—Texarkana 2018, pet. ref'd) (quoting *Murkledove v. State*, 437 S.W.3d 17, 25 (Tex. App.—Fort Worth 2014, pet. ref'd)). '"Serious bodily injury' is defined as 'bodily injury that . . . causes . . . serious permanent disfigurement, or protracted loss or impairment of the function of any bodily member or organ.'" *Nelson*, 2019 WL 3330967, at *2 (quoting TEX. PENAL CODE ANN. § 1.07(a)(46)).

Patterson's offense was indecency with a child by exposure. He neither touched Doe nor did the State allege that he intended to. Although the State refers to the possibility of psychological harm to Doe, one past incident of Patterson's involving family violence, and incidents of public masturbation, this does not inform the question of whether "the offense *of which the person was acquitted* involved conduct that . . . placed another person in imminent danger of serious bodily injury." TEX. CODE CRIM. PROC. ANN. art. 46C.157(2) (emphasis added).

The State points to Everett's testimony about how child abuse "can cause substantial clinical harm, lasting physical health consequences, suppressed immunity and increased likelihood of suicidal ideations," but admits that "these effects will take time to compound." This evidence does not support any finding of imminent serious bodily harm. Simply put, we find that the State failed to present any evidence that Patterson's conduct in exposing himself could cause imminent serious bodily harm to Doe. As a result, we sustain Patterson's first point of error.[1]

IV. Conclusion

We reverse the trial court's commitment order and remand the matter for further proceedings in accordance with Article 46C.159 of the Texas Code of Criminal Procedure. *See* TEX. CODE CRIM. PROC. ANN. art. 46C.159.

Charles van Cleef
Justice

Date Submitted: October 19, 2026
Date Decided: October 28, 2026

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[1]The State refers to *Scott*, which we distinguish because one of the offenses the defendant was charged with in that case involved the defendant lighting the victim's personal property on fire while the victim was present. *Scott*, 2017 WL 3183285, at *2.